

IN THE COURT OF COUNTY
(COURT AND COUNTY NAMED IN THE CAPTION - THE COURT IN WHICH THE CONVICTION
OCCURRED, AND ITS COUNTY (STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL;
YOUR OWN CASE PAPERS NAME BOTH, AND THE INSTRUCTIONS PAGE SAYS WHO CAN
CONFIRM THEM))
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
FOLLOWING PARDON
(O.C.G.A. Sec. 35-3-37(j)(7))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this petition in the above-styled criminal case, in the existing case under the existing case number, under O.C.G.A. Sec. 35-3-37(j)(7). The defendant states:

1. The defendant was convicted of an offense in the above-styled case, and the State Board of Pardons and Paroles has pardoned that conviction. The pardon certificate is attached as Exhibit B.
2. The offense of conviction was not a serious violent felony as defined in O.C.G.A. Sec. 17-10-6.1 and was not a sexual offense as defined in O.C.G.A. Sec. 17-10-6.2. Those exclusions turn on the exact Code section of conviction, which the defendant states below.
3. The defendant has not been convicted of any crime in any jurisdiction, excluding nonserious traffic offenses, since the pardon was granted.
4. The defendant has no pending charged offenses in any jurisdiction.
5. The harm otherwise resulting to the defendant clearly outweighs the public interest in the criminal history record information being publicly available.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from memory; the instructions page lists where each record lives):

Date of arrest in this case:

.....

Exact O.C.G.A. Code section of the conviction that was pardoned:

.....

Date the State Board of Pardons and Paroles granted the pardon:

.....

Your own statement of what has changed and how this record has been a barrier (state only what you know first-hand; nothing on these lines is written for you):

.....

.....

.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this petition; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order directing the Georgia Crime Information Center (GCIC) and every agency in the county named in the caption, including the arresting agency and the jail or detention center, to restrict all criminal history record information pertaining to this case, pursuant to O.C.G.A. Sec. 35-3-37(j)(7), with disclosure limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit; and, in the alternative, that the petition be set for hearing within 90 days of filing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this petition personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-pathway:GA:ga-pardon-j7:restriction-and-sealing-of-a-pardoned-felony

IN THE COURT OF COUNTY
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STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER RESTRICTING ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
(O.C.G.A. Sec. 35-3-37(j)(7))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the defendant's Petition to Restrict Access to Criminal History Record Information
Following Pardon under O.C.G.A. Sec. 35-3-37(j)(7).

IT IS ORDERED that the Georgia Crime Information Center (GCIC) and every agency in the county
named in the caption, including the arresting agency and the jail or detention center, restrict all criminal
history record information pertaining to this case, identified by the OTN and the date of arrest stated
below, pursuant to O.C.G.A. Sec. 35-3-37(j)(7).

Disclosure of the restricted information remains limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit.

OTN of the case (needed for this order to be actionable by GCIC):
.....

Date of arrest identified in this order:
.....

SO ORDERED, this day of, 20.....

.....
JUDGE, COURT NAMED IN THE CAPTION
(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Petition to Restrict Access to Criminal History Record Information Following Pardon and the
accompanying proposed order on each person listed below, by certified mail, e-filing or hand delivery.

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and
signed when the copies actually go out. A date or a signature written before the copies go out would be
false.

Route: obligation:track-pathway:GA:ga-pardon-j7:restriction-and-sealing-of-a-pardoned-felony

EXHIBIT A - FINAL DISPOSITION

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information Following Pardon in this packet.

ATTACH BEHIND THIS PAGE: a copy of the final disposition of this case.

WHERE YOU GET IT: the clerk of the convicting court.

HOW: Ask the clerk of the convicting court for a copy of the final disposition and attach it behind this page.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-pathway:GA:ga-pardon-j7:restriction-and-sealing-of-a-pardoned-felony

EXHIBIT B - PARDON CERTIFICATE

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information Following Pardon in this packet.

ATTACH BEHIND THIS PAGE: the pardon certificate for this conviction.

WHERE YOU GET IT: the State Board of Pardons and Paroles.

HOW: Request a copy of the pardon certificate from the State Board of Pardons and Paroles and attach it behind this page.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-pathway:GA:ga-pardon-j7:restriction-and-sealing-of-a-pardoned-felony

EXHIBIT C - PARTICIPANT-SUPPLIED SUPPORTING EXHIBITS

ATTACH THESE ONLY WHERE YOU CHOOSE TO SUPPLY THEM.

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information Following Pardon in this packet.

ATTACH BEHIND THIS PAGE: supporting exhibits you choose to supply.

WHERE YOU GET IT: your own records.

HOW: The packet formats what you supply and assesses none of it.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-pathway:GA:ga-pardon-j7:restriction-and-sealing-of-a-pardoned-felony